NCRWC AND WORKING OF THE CONSTITUTION

PROVENANCE → MANDATE → WORKING → RECOMMENDATIONS → STATUS AUDIT → PERFORMANCE → ANSWER

Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure; the grey E card is optional enrichment only and never repairs missing core content.

PRIMARY CORE FLOW · SUBORDINATE EXTRA · APPROVAL / REVIEW

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles

Approval: FALSE • Pending user review • active generation g4 • explicit approval of this exact generation is required • all prior artifacts unchanged

00 NCRWC IDENTITY, MANDATE AND CONSTITUTIONAL BOUNDARY

STAGE 00 · NCRWC IDENTITY, MANDATE AND CONSTITUTIONAL BOUNDARY · ROOT QUESTION · HOW CAN CONSTITUTIONAL PERFORMANCE BE REVIEWED WITHOUT CLAIMING CONSTITUENT POWER? · 2000 GOVERNMENT RESOLUTION · TEMPORARY EXECUTIVE ADVISORY COMMISSION. · JUSTICE M.N. VENKATACHALIAH · 11 MEMBERS · REPORT SUBMITTED IN 2002.

CONSTITUTIONAL BASIS / ARTICLE
- ROOT QUESTION
- How can constitutional performance be reviewed without claiming constituent power?
- 2000 Government resolution → temporary executive advisory commission.

POWER / PROCEDURE
- Justice M.N. Venkatachaliah → chair
- 11 members
- report submitted in 2002.

CHECK / LIMIT
- MANDATE: review fifty years of working → effective governance + socio-economic development.
- BOUNDARY: parliamentary democracy + basic structure preserved.
- VERDICT: review of working != rewriting the Constitution.

FEDERAL / RIGHTS IMPACT
- Justice M.N. Venkatachaliah → chair

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The NCRWC reviewed constitutional working within parliamentary democracy and basic-structure limits, making it an advisory reform commission rather than a constituent assembly.

01 CONSULTATION AND INSTITUTIONAL IDENTITY FIREWALL

STAGE 01 · CONSULTATION AND INSTITUTIONAL IDENTITY FIREWALL · CONSULTATION PAPERS + EXPERT STUDIES + PUBLIC RESPONSES + · ADVISORY REPORT. · CONSTITUENT ASSEMBLY · FRAMED CONSTITUTION. · PARLIAMENT/ART 368 · AMENDS THROUGH CONSTITUTIONAL PROCEDURE. · LAW COMMISSION

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
CONSULTATION papers + expert studies + public responses + thematic deliberation → advisory report.	PARLIAMENT/ART 368 → amends through constitutional procedure.	SARKARIA/PUNCHHI → Centre-State review.	TRAP expertise and consultation create persuasion, not legal force.
CONSTITUENT ASSEMBLY → framed Constitution.	LAW COMMISSION → law-reform reports.	NCRWC → comprehensive working review, no constituent authority.	CONSULTATION papers + expert studies + public responses + thematic deliberation → advisory report.

CONSTITUTIONAL BASIS / ARTICLE
- CONSULTATION papers + expert studies + public responses + thematic deliberation → advisory report.
- CONSTITUENT ASSEMBLY → framed Constitution.

POWER / PROCEDURE
- PARLIAMENT/ART 368 → amends through constitutional procedure.
- LAW COMMISSION → law-reform reports.

CHECK / LIMIT
- SARKARIA/PUNCHHI → Centre-State review.
- NCRWC → comprehensive working review, no constituent authority.

FEDERAL / RIGHTS IMPACT
- TRAP expertise and consultation create persuasion, not legal force.
- CONSULTATION papers + expert studies + public responses + thematic deliberation → advisory report.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Composition caution: Membership gave the Commission legal, parliamentary, administrative and public-policy experience, but expertise did not convert its report into law or constituent power.

02 WORKING OF THE CONSTITUTION: TEXT TO LIVED PERFORMANCE

STAGE 02 · WORKING OF THE CONSTITUTION · TEXT TO LIVED PERFORMANCE · ARTICLES + PARTS + SCHEDULES · PARLIAMENT + EXECUTIVE + COURTS + FEDERAL UNITS + · PRACTICE CONVENTIONS + PARTIES + ADMINISTRATION + POLITICAL INCENTIVES · OUTCOMES RIGHTS + ACCOUNTABILITY + DELIBERATION + FEDERAL TRUST · KESAVANANDA BHARATI (1973) · STRUCTURAL BOUNDARY.

Articles + Parts + Schedules

Parliament + executive + courts + federal units + bodies → PRACTICE conventions + parties + administration + political incentives → OUTCOMES rights + accountability + deliberation + federal trust + remedies.

CONSTITUTIONAL BASIS / ARTICLE
- Articles + Parts + Schedules
- Parliament + executive + courts + federal units + bodies

POWER / PROCEDURE
- PRACTICE conventions + parties + administration + political incentives
- OUTCOMES rights + accountability + deliberation + federal trust + remedies.

CHECK / LIMIT
- Kesavananda Bharati (1973) → structural boundary.
- Minerva Mills (1980) → limited amendment + rights-DPSP harmony.

FEDERAL / RIGHTS IMPACT
- Articles + Parts + Schedules
- Parliament + executive + courts + federal units + bodies

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Constitutional working converts text into restrained power, effective rights, accountable institutions and cooperative practice, so formal compliance alone cannot establish constitutional success.

03 RECOMMENDATION CLUSTERS WITHOUT LAW-STATUS CONTAMINATION

STAGE 03 · RECOMMENDATION CLUSTERS WITHOUT LAW-STATUS CONTAMINATION · DUTIES NEW RIGHTS, STRONGER IMPLEMENTATION AND PROPOSED DUTIES. · PARTIES CRIMINALISATION, FINANCE, ECI SELECTION, PARTY LAW AND ANTI-DEFECTION. · ADMINISTRATION SITTINGS, COMMITTEES, PRIVILEGES, MINISTRY SIZE, CIVIL SERVICES AND · LOCAL GOVERNMENT APPOINTMENTS, ACCESS, GOVERNOR, ART 356, COUNCILS AND · STATUS EVERY NODE · NCRWC RECOMMENDATION UNTIL SEPARATELY ENACTED.

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
RIGHTS / DPSP / DUTIES new rights, stronger implementation and proposed duties.	PARLIAMENT / EXECUTIVE / ADMINISTRATION sittings, committees, privileges, ministry size, civil services and integrity.	STATUS every node = NCRWC recommendation until separately enacted.	ELECTIONS / PARTIES criminalisation, finance, ECI selection, party law and anti-defection.
ELECTIONS / PARTIES criminalisation, finance, ECI selection, party law and anti-defection.	JUDICIARY / FEDERALISM / LOCAL GOVERNMENT appointments, access, Governor, Art 356, councils and devolution.	RIGHTS / DPSP / DUTIES new rights, stronger implementation and proposed duties.	PARLIAMENT / EXECUTIVE / ADMINISTRATION sittings, committees, privileges, ministry size, civil services and integrity.

CONSTITUTIONAL BASIS / ARTICLE
- RIGHTS / DPSP / DUTIES new rights, stronger implementation and proposed duties.
- ELECTIONS / PARTIES criminalisation, finance, ECI selection, party law and anti-defection.

POWER / PROCEDURE
- PARLIAMENT / EXECUTIVE / ADMINISTRATION sittings, committees, privileges, ministry size, civil services and integrity.
- JUDICIARY / FEDERALISM / LOCAL GOVERNMENT appointments, access, Governor, Art 356, councils and devolution.

CHECK / LIMIT
- STATUS every node = NCRWC recommendation until separately enacted.
- RIGHTS / DPSP / DUTIES new rights, stronger implementation and proposed duties.

FEDERAL / RIGHTS IMPACT
- ELECTIONS / PARTIES criminalisation, finance, ECI selection, party law and anti-defection.
- PARLIAMENT / EXECUTIVE / ADMINISTRATION sittings, committees, privileges, ministry size, civil services and integrity.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The NCRWC examined modern governance across rights, institutions, federalism and development, but its 249 recommendations required different constitutional, legislative or executive routes.

04 IMPLEMENTATION AUDIT: EXACT, MODIFIED, SIMILAR OR PENDING

STAGE 04 · IMPLEMENTATION AUDIT · EXACT, MODIFIED, SIMILAR OR PENDING · LATER INSTRUMENT · LEGAL EFFECT · 10% MINISTRY CEILING · 91ST AMENDMENT (2003) USES 15% · MODIFIED RELATED REFORM, NOT EXACT ADOPTION. · JUDICIAL COMMISSION

PROPOSAL → LATER INSTRUMENT → WORDING → LEGAL EFFECT → VERDICT

10% ministry ceiling → 91st Amendment (2003) uses 15% → modified related reform, not exact adoption. → judicial commission

CONSTITUTIONAL BASIS / ARTICLE
- PROPOSAL → LATER INSTRUMENT → WORDING → LEGAL EFFECT → VERDICT
- 10% ministry ceiling
- 91st Amendment (2003) uses 15% → modified related reform, not exact adoption.

POWER / PROCEDURE
- judicial commission
- NJAC enacted 2014, invalidated 2015 → not current NCRWC design.
- party law + narrow whip

CHECK / LIMIT
- no comprehensive enactment → substantially pending.
- disaster to Concurrent List
- Disaster Management Act 2005, no List transfer → statutory response, not adoption.

FEDERAL / RIGHTS IMPACT
- RULE chronology + similarity != proven implementation.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Implementation must match the exact recommendation to a later legal instrument and result, because thematic similarity does not prove formal adoption.

05 ACCOUNTABILITY, FEDERALISM AND LEGISLATIVE PRACTICE

STAGE 05 · ACCOUNTABILITY, FEDERALISM AND LEGISLATIVE PRACTICE · ACCOUNTABILITY ELECTIONS · JUDICIAL REVIEW. · LEGISLATURE SITTING TIME · DELEGATED LAW · FINANCIAL CONTROL. · FEDERAL PRACTICE CONSULTATION · GOVERNOR RESTRAINT · ACCOUNTABILITY elections

judicial review. → LEGISLATURE sitting time → scrutiny → delegated law → opposition → financial control. → FEDERAL PRACTICE consultation → councils → Governor restraint → floor test → negotiated implementation.

CONSTITUTIONAL BASIS / ARTICLE
- ACCOUNTABILITY elections
- judicial review.

POWER / PROCEDURE
- LEGISLATURE sitting time → scrutiny → delegated law → opposition → financial control
- FEDERAL PRACTICE consultation → councils → Governor restraint → floor test → negotiated implementation.

CHECK / LIMIT
- S.R. Bommai (1994) → federal and secular structural enforcement.
- TRAP majority strength or coalition form does not itself prove good constitutional working.

FEDERAL / RIGHTS IMPACT
- ACCOUNTABILITY elections
- judicial review.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Constitutional accountability combines electoral, legal, financial and administrative controls, while legislative quality depends on time, committees, scrutiny and public reasons.

06 CONSTITUTIONAL MORALITY AND RIGHTS ENFORCEMENT

STAGE 06 · CONSTITUTIONAL MORALITY AND RIGHTS ENFORCEMENT · CONSTITUTIONAL MORALITY TEXT + PROCEDURE + EQUAL CITIZENSHIP + · K.S. PUTTASWAMY (2017) PRIVACY + DIGNITY IN MODERN GOVERNANCE. · NAVTEJ SINGH JOHAR V. UNION OF INDIA (2018) CONSTITUTIONAL · RIGHTS WORKING GUARANTEE · AFFORDABLE REMEDY · PUBLIC JUSTIFICATION. · LIMIT MORALITY IS NOT PERSONAL PREFERENCE; LATER CASES ARE

CONSTITUTIONAL MORALITY text + procedure + equal citizenship + institutional role restraint.

K.S. Puttaswamy (2017) privacy + dignity in modern governance. → Navtej Singh Johar v. Union of India (2018) constitutional morality + transformative rights. → RIGHTS WORKING guarantee → institution → affordable remedy → compliance → public justification.

CONSTITUTIONAL BASIS / ARTICLE
- CONSTITUTIONAL MORALITY text + procedure + equal citizenship + institutional role restraint.
- K.S. Puttaswamy (2017) privacy + dignity in modern governance.

POWER / PROCEDURE
- Navtej Singh Johar v. Union of India (2018) constitutional morality + transformative rights.
- RIGHTS WORKING guarantee → institution → affordable remedy → compliance → public justification.

CHECK / LIMIT
- LIMIT morality is not personal preference; later cases are not NCRWC implementation evidence.
- CONSTITUTIONAL MORALITY text + procedure + equal citizenship + institutional role restraint.

FEDERAL / RIGHTS IMPACT
- K.S. Puttaswamy (2017) privacy + dignity in modern governance.
- Navtej Singh Johar v. Union of India (2018) constitutional morality + transformative rights.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: NCRWC proposals on rights, property, Directive Principles and duties remain recommendations whose current status must be tested against later constitutional text and law.

07 REFORM-METHOD LADDER AND FEASIBILITY TEST

STAGE 07 · REFORM-METHOD LADDER AND FEASIBILITY TEST · DIAGNOSE TEXT GAP? CONVENTION FAILURE? CAPACITY DEFICIT? INCENTIVE FAILURE? · PRACTICE/CONVENTION REPAIR EXECUTIVE RULE OR CAPACITY ORDINARY LEGISLATION · ARTICLE 368 AMENDMENT · TEST BASIC STRUCTURE + RIGHTS + FEDERALISM + DEMOCRATIC · VERDICT USE THE LEAST LEGALLY SUFFICIENT AND INSTITUTIONALLY WORKABLE

DIAGNOSE text gap? convention failure? capacity deficit? incentive failure? remedy gap?

practice/convention repair executive rule or capacity ordinary legislation → Article 368 amendment → TEST basic structure + rights + federalism + democratic legitimacy finance + implementation + review.

CONSTITUTIONAL BASIS / ARTICLE
- DIAGNOSE text gap? convention failure? capacity deficit? incentive failure? remedy gap?
- practice/convention repair executive rule or capacity ordinary legislation

POWER / PROCEDURE
- Article 368 amendment
- TEST basic structure + rights + federalism + democratic legitimacy finance + implementation + review.

CHECK / LIMIT
- VERDICT use the least legally sufficient and institutionally workable route.
- DIAGNOSE text gap? convention failure? capacity deficit? incentive failure? remedy gap?

FEDERAL / RIGHTS IMPACT
- practice/convention repair executive rule or capacity ordinary legislation
- Article 368 amendment

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Reform should follow the diagnosed failure through administrative, statutory or constitutional routes, using amendment only where text rather than implementation is deficient.

08 VERIFIED PROVENANCE AND COMPOSITION

STAGE 08 · VERIFIED PROVENANCE AND COMPOSITION · 22 FEBRUARY 2000: GOVERNMENT RESOLUTION CONSTITUTED THE NCRWC. · P.A. SANGMA LATER RESIGNED. · 11 MARCH 2002: ADOPTED AND SIGNED.

22 February 2000: Government resolution constituted the NCRWC. → Justice M.N. Venkatachaliah chaired an eleven-member Commission. → P.A. Sangma later resigned. → Secretary Raghbir Singh was not a Commission member. → 11 March 2002: adopted and signed.

31 March 2002: presented to the Prime Minister.

ORIGIN
- 22 February 2000: Government resolution constituted the NCRWC.
- Justice M.N. Venkatachaliah chaired an eleven-member Commission.

MEMBERSHIP CAUTION
- P.A. Sangma later resigned.
- Secretary Raghbir Singh was not a Commission member.

REPORT
- 11 March 2002: adopted and signed.
- 31 March 2002: presented to the Prime Minister.

MECHANISM / VERDICT — Read the verified source, separate recommendation from law, and assign a precise status before reaching a verdict.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The NCRWC's executive origin, expert membership and consultation generated persuasive authority, not constituent or binding legal power.

09 EXACT RECOMMENDATION METRICS

STAGE 09 · EXACT RECOMMENDATION METRICS · 249 TOTAL: 58 AMENDMENT, 86 LEGISLATION AND 105 EXECUTIVE ACTION. · LOK SABHA 120 DAYS; RAJYA SABHA 100. · CONSTRUCTIVE NO-CONFIDENCE: 20% NOTICE PLUS ALTERNATIVE LEADER. · GOVERNOR ABOUT SIX MONTHS AND PRESIDENT ABOUT THREE MONTHS FOR RESERVED-BILL ACTION.

ROUTES
- 249 total: 58 amendment, 86 legislation and 105 executive action.
- Route diversity proves that not every defect required constitutional amendment.

LEGISLATURE
- Lok Sabha 120 days; Rajya Sabha 100.
- State Houses: 90 days; or 50 where membership is below 70.

EXECUTIVE AND COURTS
- Constructive no-confidence: 20% notice plus alternative leader.
- 10% ministry ceiling; High Court age 65; Supreme Court age 68.

FEDERAL TIME
- Governor about six months and President about three months for reserved-Bill action.
- These figures were proposals, not current constitutional text.

MECHANISM / VERDICT — Read the verified source, separate recommendation from law, and assign a precise status before reaching a verdict.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Exact figures make an answer concrete only when each is labelled as an NCRWC proposal and separated from later operative law.

10 PERFORMANCE DASHBOARD AND ANSWER EXECUTION

STAGE 10 · PERFORMANCE DASHBOARD AND ANSWER EXECUTION · LEGISLATURE: SITTINGS, SCRUTINY, FINANCE AND DEBATE. · FEDERALISM: CONSULTATION, FISCAL TRUST, RESTRAINT AND DISPUTE SETTLEMENT. · IDENTIFY DEMAND AND EXACT RECOMMENDATION.

DASHBOARD
- Legislature: sittings, scrutiny, finance and debate.
- Executive: responsibility, legality, transparency and delivery.
- Judiciary: access, independence, pendency and accountability.

FEDERAL AND RIGHTS
- Federalism: consultation, fiscal trust, restraint and dispute settlement.
- Local government: functions, funds and functionaries.
- Rights: remedy access, compliance and equal citizenship.

ANSWER AUDIT
- Identify demand and exact recommendation.
- State route and independently verified current status.
- Test feasibility and end with a graded verdict.

MECHANISM / VERDICT — Read the verified source, separate recommendation from law, and assign a precise status before reaching a verdict.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Constitutional working must be measured through role-specific evidence, then repaired by the least legally sufficient and workable route.

11 UPSC SYNTHESIS: COMMISSION REPORT TO CONSTITUTIONAL ANSWER

STAGE 11 · UPSC SYNTHESIS · COMMISSION REPORT TO CONSTITUTIONAL ANSWER · PRELIMS FIREWALL · 2000 RESOLUTION · 11 MEMBERS · 2002 REPORT ADVISORY · REVIEW, NOT REWRITE · RECOMMENDATIONS, NOT LAW.

PRELIMS FIREWALL → 2000 resolution → 11 members → 2002 report advisory → review, not rewrite

CONSTITUTIONAL BASIS / ARTICLE
- PRELIMS FIREWALL
- 2000 resolution
- 11 members
- 2002 report advisory

POWER / PROCEDURE
- review, not rewrite
- recommendations, not law.
- MAINS SPINE identity → mandate → working beyond text → recommendation clusters
- implementation audit → morality/accountability/federal practice → reform ladder.

CHECK / LIMIT
- PYQ ROUTE constitutional morality
- electoral reform
- judicial accountability
- basic structure.

FEDERAL / RIGHTS IMPACT
- NCRWC is a diagnostic reform menu subject to constitutional route and present-law verification.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: NCRWC proposals must remain distinct from later law, judicial doctrine and convention, especially on rights, ministry size, appointments and the Model Code.

E SUBORDINATE ENRICHMENT — ONLY AFTER THE COMPLETE CORE

EXTRA · OPTIONAL ADVANCED ENRICHMENT · USE ONLY AFTER THE COMPLETE CORE. · RECOMMENDATIONS REMAIN NON-BINDING UNLESS A LATER LEGAL INSTRUMENT IS · INSTITUTIONAL-PERFORMANCE FRAMEWORK CONSTITUTIONAL WORKING CAN BE EVALUATED THROUGH FOUR · EVIDENCE ROUTE · IS THE ACTOR CONSTITUTIONALLY EMPOWERED? · TEXT, STATUTE, RULE · ARE RIGHTS, FEDERALISM AND ROLE LIMITS RESPECTED?

OPTIONAL DOCTRINE / CASE
- Use only after the complete Core.
- Recommendations remain non-binding unless a later legal instrument is separately identified.
- Institutional-performance framework Constitutional working can be evaluated through four linked capacities: | Capacity | Question | Evidence route
- | | |---|---| | Authorisation | Is the actor constitutionally empowered?

ADVANCED LIMIT
- text, statute, rule | | Restraint | Are rights, federalism and role limits respected?
- reasons, review, conventions | | Delivery | Can the institution convert authority into timely outcomes?
- staffing, procedure, finance | | Correction | Can failure be exposed and remedied?
- Parliament, audit, courts, elections | The framework prevents two opposite errors: assuming that valid text guarantees good government,

COMPARATIVE NUANCE
- and assuming that performance failure always requires constitutional amendment.
- Reform sequencing and implementation causation A commission recommendation should be coded as: 1.
- functionally similar later reform without proven attribution; 4.
- judicial development in a related field; 5.

OPTIONAL STATUS — This optional depth is unnecessary for a competent core answer; use it only for added nuance after the complete core has been written.

END OF MASTER CANVAS • poster embeds this exact master • tiled pages are overlapping crops of the same pixels